

Grounds of complaint (for the ET1) for sex harassment or sexual harassment (and constructive dismissal, if you have resigned)

[The words in square brackets, bold and italics allow you to insert and delete the words that are right for your own case]

1. I *[am/was]* employed by *[insert the name of your employer]* from/since *[insert the date that you commenced employment]* to *[insert the date that your employment ended, if it has ended]*. My employer, the Respondent, is *[briefly describe your employer's business]*.

2. I *[am/was]* employed as *[insert your job title]*. My work and role involved *[set out the details of your role and the work that you did for your employer. If it is relevant, include details relating to the work environment (i.e details of an intimidating, hostile, degrading, humiliating or offensive environment), your relationships with colleagues/your manager/other parties (set out the workplace relationship between you and the harasser), and any other relevant details here that will help the employment tribunal to understand your workplace and the individuals involved in the events that took place]*.

3. I was subjected to the following conduct which amounted to *[sex harassment/sexual harassment]*:

[Below are some tips to help you set out your complaint:

- *describe the events that were sex or sexual harassment in chronological order and include times/dates/timelines*
- *provide as much information as possible including the dates the events occurred, the full names of the harasser and any other individuals who were present and witnessed the events*
- *describe the nature of the conversations and if possible, quote specific words or phrases that were used during any meetings or discussions*
- *describe any acts that took place or particular comments that were made. Include details such as the way in which the person said it, any innuendos or gestures and any subtle details.*
- *Describe the events in a way that shows there was a continuing course of conduct that took place over a period of time rather than isolated events.*
- *Describe how the events made you feel, for example, if the incidents create an intimidating, hostile, degrading, humiliating or offensive environment for you to work in.*

- ***Describe the impact these incidents have had on you (and is continuing to have on you), in terms of your health, your emotional wellbeing, your ability to perform your job, your confidence at work, any impact upon your personal relationships etc.***
- ***If this paragraph is long, feel free to split it into several paragraphs or sub-paragraphs. It is best to give each separate incident its own paragraph or sub-paragraph]***

4. ***[If you resigned due to the course of conduct described in the paragraph(s) above, make sure you describe the collective events that led to the final event and describe the last straw that led you to resign. This description is necessary for a constructive dismissal claim, where you need to show that you resigned in response to a series of breaches of contract or a “course of conduct” by your employer, which when looking at the events together, amounts to a breach of your employment contract (a breach of the implied term of trust and confidence). The “last straw” is the final incident in the chain of events that led to you resigning].***

5. The conduct described above was unwanted and ***[of a sexual nature or related to my sex [or the sex of another person, [insert the person’s name]]. The conduct [had the purpose or effect of violating my dignity or created an intimidating, hostile, degrading, humiliating or offensive environment for me].***

6. On ***[insert the date]***, I raised a grievance about this conduct which I sent to ***[insert the name of the person the grievance was sent to and their job title]***. The grievance contained the following details ***[outline the details of your grievance or refer to the incidents described in paragraph(s) XX above]***.

7. I was invited to attend a grievance meeting on ***[insert the date of the grievance meeting]*** which was conducted by ***[insert the name of the individual who heard your grievance and their job title]***. ***[include any other details relating to the grievance process that you want the tribunal to be aware of. For example, was there a long delay before you received a response to your grievance? Was the person hearing the grievance biased in any way? Were there any flaws in the grievance process that lead you to believe that the grievance was not handled fairly or independently? Were you invited to a grievance meeting at all? Were you given the opportunity to be accompanied at the meeting by a colleague or trade union representative?]***

8. I received a written response by letter dated ***[insert the date]*** which ***[did not uphold my grievance/did not deal]*** with my grievance in a satisfactory way. The grievance outcome was as follows. ***[Describe the details of the grievance outcome and why it was not dealt with satisfactorily]***.

9. On ***[insert the date]***, I appealed against the outcome of the grievance. My appeal was on the following grounds: ***[include details about your appeal]***. ***[If you did not appeal the outcome, state that you did not appeal the outcome of the grievance and the reasons why.]***

10. ***[If you resigned from your employment, include the following details - On [insert the date], I resigned [with/without notice], in response to the [sex/sexual harassment] [and the failure to deal properly with my grievance]. [Insert any other details that are linked to your claim for sex/sexual harassment and you would like the tribunal to know.]***

11. I believe that ***the [sex harassment/the sexual harassment] [and my employer's failure to deal with my grievance]*** constituted a fundamental breach of trust and confidence, entitling me to resign with immediate effect.

12. ***[If you sent written questions to your employer about any the incidents, include the following paragraph - On [insert date] I sent to my employer a list of questions in accordance with the procedure set out in the 'Acas guide to asking and responding to questions on discrimination in the workplace'. My employer [did not reply/has failed to adequately reply] [OR my employer's answers support my claim for [sex harassment/sexual harassment/sex discrimination because] [set out the details on how your employer's response supports your claim].]***

13. If the tribunal finds that any act or omission complained of occurred more than three months before its receipt of this claim, or is outside of the extended limitation period following participation in Acas early conciliation, and that such act or omission is not part of a continuing act under section 123(3)(a) of the Equality Act 2010, I state that it would be just and equitable in the circumstances for the tribunal to extend time for submission of my claim under section 123(1)(b) because ***[include details of why the claim was submitted late, for example, were you too ill or suffering from depression/waiting for the outcome of the grievance process in the hope of an amicable resolution, if your employer played a part in the delay, etc].***

14. I have been affected in the following ways: ***[include details here of the emotional impact that your employer's behaviour has had on you]***. I ***[have/have not]*** found alternative employment since the date of my dismissal.

15. I seek the following remedies:

(a) Compensation for financial loss and injury to feelings.

(b) An award of aggravated damages ***[include this request for aggravated damages award where your employer has acted in a high-handed, malicious, insulting or oppressive manner, for example, where there was malice or bad intention on the part of your employer]***.

- (c) *[if you have suffered personal injury, then include the words 'compensation for personal injury'].*
- (d) *[if you resigned in response to your employer's actions, include the words 'compensation for constructive unfair dismissal'.]*
- (e) *[if your employer did not respond to your grievance, or failed to deal with your grievance adequately, or did not offer you the right of appeal, or did not comply with any part of the [Acas Code of Practice on Disciplinary and Grievance Procedures](#), then include the following words - An uplift of up to 25% to the compensation awarded by the tribunal because of the Respondent's unreasonable failure to comply with the Acas Code of Practice on Disciplinary and Grievance Procedures.]*
- (f) Interest at the appropriate rate.
- (g) *[That the employment tribunal make the following declaration[s]: [insert the declaration that you would like the tribunal to make, for example, that there was sexual harassment/sex harassment/sex discrimination].]*
- (h) *[If you would like the employment tribunal to make recommendations, for example, that your employer provide an agreed reference to you, or that your employer apologise to you for the acts complained of etc, include the following wording - That the employment tribunal make the following recommendation[s]: [include details of the recommendations you are asking for].]*

[Insert Date]